

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Pagnamenta	Team: Squad #02	CCRB Case #: 202103361	☐ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/21/2021 9:18 PM, Wednesday, 02/23/2022 10:00 AM	Location of Incident: Wyona Street and Riverdale Avenue	18 Mo. SOL 11/21/2022	Precinct: 75		
Date/Time CV Reported Thu, 06/03/2021 1:37 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 06/03/2021 1:37 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Adnan Radoncic	01316	930995	075 PCT
2. POM Alec Solomito	03561	964782	075 PCT
3. DTS James Argila	03497	946752	075 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DTS James Argila	Abuse: Detective James Argila stopped § 87(2)(b)	A . Unsubstantiated
B . DTS James Argila	Abuse: Detective James Argila frisked § 87(2)(b)	B . Unsubstantiated
C . DTS James Argila	Abuse: Detective James Argila searched § 87(2)(b)	C . Substantiated
D . SGT Adnan Radoncic	Abuse: Sergeant Adnan Radoncic searched § 87(2)(b)	D . Substantiated
E . DTS James Argila	Untruthful Stmt.: Detective James Argila provided a false official statement to the CCRB.	E . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 3rd, 2021, § 87(2)(b) filed the following complaint via the CCRB’s call processing system.

At approximately 9:18 p.m., on May 21st, 2021, § 87(2)(b) was walking on Wyona Street towards its intersection with Riverdale Avenue in Brooklyn, when Sergeant Adnan Radoncic, Detective James Argila, and Police Officer Alec Solomito, of the 75th Precinct, exited their unmarked police vehicle and approached him on the sidewalk. Detective Argila instructed § 87(2)(b) to put his “hands up” and asked him if he had anything on him he was not “supposed to” (**Allegation A - Abuse of Authority: Stop, Unsubstantiated**). Detective Argila then patted down § 87(2)(b) waist and pocket area (**Allegation B - Abuse of Authority: Frisk, Unsubstantiated**), reached into his pockets, and lifted his jacket (**Allegation C - Abuse of Authority: Search, Substantiated**), Sergeant Radoncic then also lifted up § 87(2)(b) jacket (**Allegation D - Abuse of Authority: Search, Substantiated**). The three officers provided § 87(2)(b) with their business cards (**Board Review 01**) and left.

The investigation determined that Detective Argila provided a false official statement to the CCRB on February 23rd, 2022 (**Allegation E: Untruthful Statement – False Official Statement, Substantiated**). § 87(2)(g), § 87(4-b)

Body-worn camera (BWC) footage of the incident were obtained from the cameras of Detective Argila, Sergeant Radoncic, and Police Officer Solomito, and are attached in IA #s 31 and 74 (**Board Review 02 and 03**) and summarized in IA #32 (**Board Review 04**).

Findings and Recommendations

Allegation (A) Detective James Argila stopped § 87(2)(b)

§ 87(2)(b) was interviewed by telephone on June 14th, 2021 (**Board Review 05**). Sergeant Radoncic was interviewed at the CCRB on December 3rd, 2021 (**Board Review 06**). Detective Argila was interviewed on December 17th, 2021 (**Board Review 07**) and was brought back for a follow-up interview on February 23rd, 2022 (**Board Review 08**).

It is undisputed that as § 87(2)(b) walked towards the intersection of Wyona Street and Riverdale Avenue, Sergeant Radoncic, Detective Argila, and Police Officer Solomito stopped § 87(2)(b) because Detective Argila believed he saw him “tucking something in” on the right side of his waistband. § 87(2)(b) was wearing a leg brace on his right leg that extended from his thigh to below his knee.

§ 87(2)(b) stated that as he was walking to a store, the three officers exited an unmarked police car and approached him. The only item that § 87(2)(b) had on his person was his cell phone, located in his front left pant pocket, and at no point prior to the officers approaching him did he put or retrieve any items from his body. Detective Argila asked him if he had anything on him he was not supposed to, and § 87(2)(b) replied he did not. Detective Argila told § 87(2)(b) he had just seen him “put something” in his waist. § 87(2)(b) put up both of his hands and replied he had nothing in his hands. When § 87(2)(b) tried to retrieve his phone to show the officers, all three officers told him repeatedly, “Don’t reach for nothing.” No weapons were ultimately found on § 87(2)(b).

Sergeant Radoncic and Detective Argila both stated that they were conducting a routine patrol when Detective Argila, who had been driving, first noticed § 87(2)(b). When Sergeant Radoncic looked in § 87(2)(b) direction, he saw him bend down and “readjust” his waistband, but he did not see § 87(2)(b) put anything in his waist area. Sergeant Radoncic and Detective Argila both stated it had been Detective Argila’s decision to approach § 87(2)(b) though they did not have a conversation about Detective Argila’s observations prior to approaching § 87(2)(b).

Detective Argila stated he saw § 87(2)(b) at the intersection of Wyona and Riverdale, “angled up” against a building with his right side “closer” to the wall, as though he were trying to “shield” that side from the street area. He believed § 87(2)(b) appeared to be looking over his shoulder, as if he were “concerned” that somebody was “looking at him.” Detective Argila noticed that § 87(2)(b) was holding a black “L-shaped” object in his right hand that appeared to be a “firearm,” and it appeared like he was putting it on the right side of his waistband. Detective Argila stated that he pulled up the car to where § 87(2)(b) was walking with the intent to stop and frisk him.

The Stop Report prepared by Detective Argila was consistent with the statements he provided to the CCRB and indicated that the factors leading to § 87(2)(b) stop was concealing or possessing a weapon and that § 87(2)(b) appeared to be putting an L-shaped object suspected of being a firearm into his waistband while blading his body up against a wall as if he were trying to shield his actions from being seen by anyone else (**Board Review 09**).

None of the BWCs appear to capture the officers’ initial observation of § 87(2)(b) prior to exiting their vehicle. At 1:00 into Police Officer Solomito’s BWC footage (**Board Review 03**), he approaches § 87(2)(b) and directs his flashlight on his leg, capturing an external brace on his right knee. Detective Argila tells § 87(2)(b) “Hands up brother. Nothing on you that you’re not supposed to?” As § 87(2)(b) replies, “No,” Detective Argila pats down the right side of § 87(2)(b) waist area. Police Officer Solomito warns § 87(2)(b) “Don’t reach,” as § 87(2)(b) tries to bend down. § 87(2)(b) replies, “I just tightened my brace.” Detective Argila then asks, “What was that?” and § 87(2)(b) replies, “My brace.” Detective Argila replies, “No, no, I just watched you put something all over here. What was that?” as he continues patting down the right side of § 87(2)(b) waist area. § 87(2)(b) replies, “To tighten the brace.” Police Officer Solomito tells § 87(2)(b) to “keep his hands up.”

According to People v. De Bour, 40 N.Y.2d 210 (1976), police officers can stop an individual if there is reasonable suspicion that a particular person has committed, is committing or is about to commit a crime (**Board Review 10**). People v. Prochilo, 41 NY2d 759 (1977) states that, to justify a frisk, an officer must be able to effectively articulate “proof of a describable object or of describable conduct which provided a reasonable belief that an individual possessed a gun...” This “describable conduct” cannot consist solely of a suspect’s innocuous behavior that could have an innocent explanation, such as an individual clutching their waistband (**Board Review 11**).

NYPD Patrol Guide Procedure 212-11 states that an officer may stop someone only when the officer has an individualized reasonable suspicion that the person has committed, is committing, or is about to commit a felony or misdemeanor (**Board Review 12**).

§ 87(2)(b) stated that he wore a leg brace and the only item on his person was his cell phone located in his front left pocket and that at no point during the incident did he put or retrieve any items from his body. Detective Argila, however, stated that when he first observed § 87(2)(b) from his patrol car he had been holding an “L-shaped” object in his right hand that appeared to be a black firearm, and he believed § 87(2)(b) had then placed the object on the right side of his

waistband area. The BWC videos obtained for this incident did not capture Detective Argila's initial observations of § 87(2)(b) and showed § 87(2)(b) informing the officers, after they had already stopped him, that he had been tightening his leg brace. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation (B) Detective James Argila frisked § 87(2)(b)

Allegation (C) Detective James Argila searched § 87(2)(b)

Allegation (D) Sergeant Adnan Radoncic searched § 87(2)(b)

Allegation (E) Detective James Argila provided a false official statement to the CCRB.

§ 87(2)(b) stated that Detective Argila patted down his waist area and the area around his pants pockets, but never entered any of his pockets and did not retrieve anything. § 87(2)(b) told Detective Argila that he wore a brace, and Detective Argila did not pat down his legs. The officers informed § 87(2)(b) that they saw him "bend down" and asked him where the item was that they saw him put in his waist. § 87(2)(b) replied he had nothing on him except for his cell phone.

At 1:00 into Police Officer Solomito's BWC footage (**Board Review 03**), Detective Argila approaches § 87(2)(b) and tells him "Hands up brother. Nothing on you that you're not supposed to?" As § 87(2)(b) replies, "No," Detective Argila begins to pat down the right side of his waist area. (*In his initial CCRB interview, Detective Argila stated that he frisked § 87(2)(b) because he believed him of being in possession of a weapon based on his earlier observation*). Police Officer Solomito warns § 87(2)(b) "Don't reach," as § 87(2)(b) tries to bend down. § 87(2)(b) says, "I just tightened my brace." Detective Argila then asks, "What was that?" and § 87(2)(b) replies, "My brace." At 1:10, Detective Argila appears to enter § 87(2)(b) right pants pocket, and tells § 87(2)(b) "No, no, I just watched you put something all over here. What was that?" as he again pats down the right side of § 87(2)(b) waist area. § 87(2)(b) replies, "To tighten the brace." (*In his follow-up interview, when the Investigator asked Detective Argila why he had entered § 87(2)(b) right pants pocket, he replied he did not "see that" and explained that he had been "frisking § 87(2)(b) right waistband area" and the "upper leg area" at that point because that was where he "suspected" § 87(2)(b) "firearm" to be located. Detective Argila specified that he had not "fe[lt] a firearm" and had not retrieved anything after frisking § 87(2)(b) right waistband and leg area.*)

At 1:15 into Police Officer Solomito's BWC footage, Detective Argila appears to pat down the right side of § 87(2)(b) waist and the area around his right jacket pocket before entering it, and then briefly holds an undetermined object as his hand is inside the pocket. (*In his initial interview, Detective Argila could not identify the object he had retrieved from the pocket but specified it had been "elongated" and initially had looked like the "handle of a cutting instrument."* Detective Argila added that because the item was made of plastic, it could have been the handle of a "utility knife" or a "box cutter." Detective Argila clarified that the item was not a weapon or a "folding knife or anything like that." In his follow-up interview, when the Investigator asked what he felt when he pat down § 87(2)(b) right jacket pocket area, Detective Argila replied that he did not "remember necessarily feeling something," and added that he "remembered observing something"

that appeared to be the “handle of something that could have been a sharp object,” and had entered the pocket to “check” the item “for his safety.” When the Investigator asked if he had felt or seen the object first, Detective Argila replied that he remembered seeing the object first and did not remember ever feeling it prior to entering the pocket to retrieve the object.)

At 1:38 into Police Officer Solomito’s BWC footage, as Detective Argila reaches towards § 87(2)(b) waist on his left side, § 87(2)(b) says, “This is my phone.” Detective Argila appears to briefly pat his left jacket pocket. (In his initial Interview, when the Investigator asked Detective Argila if he had found the L-shaped object on § 87(2)(b) person during their interaction, he replied he had not, but that he could not speak for § 87(2)(b) whole person, as he had only frisked him on the right side of his body where he believed § 87(2)(b) had placed the L-shaped object. In his follow-up interview, when the Investigator asked Detective Argila why he had reached for the left side of § 87(2)(b) body, he replied that he did not see himself “go” on § 87(2)(b) left side and did not recall feeling anything on § 87(2)(b) left side. Detective Argila added that § 87(2)(b) phone had been “sticking out” of his left pants pocket but did not recall if he noticed § 87(2)(b) phone before § 87(2)(b) mentioned it. When the Investigator asked Detective Argila if he pat down the left side of § 87(2)(b) jacket, he replied that he did not recall having done so and he did not recall making any contact with § 87(2)(b) phone at that point. When the Investigator asked Detective Argila if there had been any reason to make contact with § 87(2)(b) left side, he replied in “hindsight [he] should have probably checked all over” since he believed “he was in possession of a firearm” and had not “recover[ed] it from where [he] initially saw him put it in.”)

At 1:42 into Police Officer Solomito’s BWC footage, as Detective Argila lifts up § 87(2)(b) jacket, he asks him, “What was that thing you tucked in, man?” § 87(2)(b) replies, “That’s my brace, I tightened it.” (In his follow-up interview, when the Investigator asked Detective Argila why he had lifted § 87(2)(b) jacket at this point, he replied that he was “continuing to check that area to make sure that he wasn’t missing anything” because “he had not recovered” the firearm at that point. When the Investigator asked Detective Argila if he observed any bulges in the area, he replied, “other than the fact that his hoodie was sticking out further than his waistband,” he did not “recall anything in particular.”) In the BWC footage, Detective Argila then replies, “No, no. Your hand didn’t go down that far,” as he appears to enter § 87(2)(b) right-side pants pocket again before turning § 87(2)(b) body around. (In his follow-up interview, when the Investigator asked if he had reached into § 87(2)(b) pants pocket at that point, Detective Argila replied he did not see his hand “go into anything” and that he saw his hand on his “right upper leg like [he] was continuing to frisk.” When the Investigator asked if he would have been looking for anything specific in that pocket, Detective Argila replied that if he was “touching anywhere in that area” it was because he did not “find what [he] had seen in his hand”).

At 1:48 into Police Officer Solomito’s BWC footage, Detective Argila appears to pat down § 87(2)(b) back. (In his follow-up interview, when the Investigator asked if he made any contact with § 87(2)(b) back, Detective Argila replied, “maybe by the right side,” but that he did not “necessarily recall.” Detective Argila confirmed that he had continued to pat down § 87(2)(b) at this point as he had not been able to locate the firearm.)

At 1:59 into Police Officer Solomito’s BWC footage, Detective Argila then lifts § 87(2)(b) jacket again, and appears to reenter § 87(2)(b) right pants pocket. (In his follow-up interview, when the Investigator asked Detective Argila why he had lifted § 87(2)(b) jacket again, he replied that because he had not “recovered a firearm” after “believing that [he] saw somebody in possession of a firearm, [he] was being extremely thorough.” When the Investigator asked

Detective Argila if he entered § 87(2)(b) right pants pocket at that point, he replied he did not see himself entering “anything” and repeated that he was being “thorough frisking that area for the firearm.” Detective Argila specified that he believed he first saw a firearm in § 87(2)(b) right hand when he entered the intersection while driving the police car, and that it appeared that § 87(2)(b) then “plac[ed] something into his waistband.” Detective Argila confirmed he had been unable to find the firearm on § 87(2)(b) during their interaction and further clarified that the L-shaped object he had noticed § 87(2)(b) holding from the police car had not been the same object he observed in § 87(2)(b) right jacket pocket.)

At 2:05 into Police Officer Solomito’s BWC (**Board Review 03**), Sergeant Radonic lifts up § 87(2)(b) jacket and points his flashlight towards his waist. Detective Argila then tells § 87(2)(b) “I don’t know man, it looked like you were tucking something in.” § 87(2)(b) repeats that he was tightening his brace. Detective Argila tells him, “But you didn’t bend over” and tells him, “You were right here on your right side. You turned up against the wall.” § 87(2)(b) explains while holding onto his pants, “I put the thing in there and I dropped my pants because the thing keeps on sliding down,” bending down towards his external leg brace. Detective Argila then asks him if he wants his business card, and all three officers provide § 87(2)(b) with their business cards. The BWC ends as the officers walk back to their unmarked black vehicle, and § 87(2)(b) tells Police Officer Solomito that he was going to the store to buy coconut water.

In his statement to the CCRB, Sergeant Radonic stated he did not see § 87(2)(b) put anything in his waist area and that he and Detective Argila did not have any conversation about Detective Argila’s observations of § 87(2)(b) until after the incident. Sergeant Radonic stated that, after they stopped § 87(2)(b) and Detective Argila began frisking § 87(2)(b) he noticed § 87(2)(b) “reaching” down for his waistband with his left hand and observed an “L shaped” bulge—approximately two inches long—in the middle of his pants’ waistband. Sergeant Radonic estimated that § 87(2)(b) reached down for his waistband approximately two to three times during their initial interaction, and that as a “preventative measure,” he instructed § 87(2)(b) not to “reach down” to the area where he “suspected” him of having a weapon and then tried to “determine” what he was reaching down towards. When the Investigator asked Sergeant Radonic what led him to believe that § 87(2)(b) might have a weapon on him, he replied that § 87(2)(b) kept on reaching with his left hand down to his waistband. Sergeant Radonic explained that after § 87(2)(b) did not “follow” his “directions,” he “readjusted” § 87(2)(b) shirt to “see” what was the “L shaped” object in the middle of his waistband that he had been trying to reach for. As Sergeant Radonic readjusted § 87(2)(b) shirt, he noticed that the bulge was caused by § 87(2)(b) “large belt buckle.” When the Investigator asked if he had noticed any other bulges besides the one in his waistband area, Sergeant Radonic replied he had not and that they had not found or retrieved anything from § 87(2)(b) during the incident.

According to People v De Bour 40 N.Y.2d 210 (1976), an officer can frisk the individual if the officer reasonably believes that the individual is armed and dangerous. An officer can search the individual when the officer has probable cause to believe that the individual possesses a weapon or contraband (**Board Review 10**).

NYPD Patrol Guide Procedure 212-11 states that “if a police officer develops a reasonable suspicion that a person is armed and dangerous, the officer may frisk the person for a deadly weapon or any instrument, article, or substance readily capable of causing serious physical injury and of a sort not ordinarily carried in public places by law abiding persons. Reasonable suspicion that a person is armed and dangerous may arise from the officer’s observations or the facts and circumstances of the encounter including a. Reasonable suspicion that the suspect has committed, is committing or is about to commit, a violent crime (e.g., assault with a deadly weapon, burglary,

rape, robbery, etc.) b. Observation of something on the person that the officer reasonably suspects is a weapon c. A statement by the suspect stopped that she/he is armed d. Information known by the officer that the suspect may be carrying a weapon, such as statements from a victim or witness. The patrol guide further indicates that a search occurs when the officer places his hands inside a pocket or other interior portions of a person's clothing or personal property to remove an object that the member felt during the frisk and reasonably suspects is a weapon or dangerous instrument (**Board Review 12**).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

The BWC shows Detective Argila entering § 87(2)(b) right-hand pants pocket repeatedly, as well as his right jacket pocket, and captures him lifting up § 87(2)(b) jacket repeatedly. § 87(2)(g)

It is recommended that **Allegation C** be **substantiated**.

Per People v. Barreto, 161 A.D.2d 305 (1990), officers observed an individual run across the street and grab a bulge near his waistband while doing so. Officers subsequently frisked the individual. The court ruled that the observation of a bulge near a person's waistband, and subsequent motions to grab said bulge, were insufficient to justify a frisk absent additional indicia of criminal activity. While officers had a legitimate basis for exercising their right to inquire, they exceeded the permissible scope of police intrusion by immediately grabbing the defendant's waist (**Board Review 13**).

Sergeant Radoncic acknowledged he never saw § 87(2)(b) put anything in his waist area at any point during the incident and that it was only after the encounter that Detective Argila told him he had "suspected" § 87(2)(b) of being armed. In light of the fact that the BWC does not show Sergeant Radoncic taking any prior investigative steps (such as conducting a frisk) before lifting up § 87(2)(b) jacket to check the two-inch bulge that he noticed on his waistband area, § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation D** be **substantiated**.

NYPD Patrol Guide 203-08 prohibits officers from intentionally making a false official statement regarding a material matter. “Examples of circumstances in which false statements may arise include lying under oath during a civil, administrative, or criminal proceeding” such as an interview conducted by the Civilian Complaint Review Board. A false official statement may arise when an officer creates a “false description of events” (**Board Review 14**).

Despite the fact that the BWC footage shows Detective Argila reaching into § 87(2)(b) right pants pocket on multiple occasions (1:11 and 2:02 into Police Officer Solomito’s BWC (**Board Review 03**)), and despite having been shown these portions of the footage during his follow-up interview on February 23rd, 2022, Detective Argila continued to deny that he reached into § 87(2)(b) pants pocket and denied seeing himself take this action in the BWC footage. § 87(2)(g) recommends that **Allegation E** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 17**).
- Detective James Argila has been a member of service for 13 years and has been a subject in 11 other CCRB complaint and 26 other allegations, five of which were substantiated in two cases. § 87(2)(g)
 - 201808991 involved substantiated allegations of frisk and threat of summons, for which the Board recommended formalized training and the NYPD imposed formalized training.
 - 202007357 involved substantiated allegations of stop, refusal to provide shield number, and failure to provide RTKA card. The Board recommended Command Discipline B but the NYPD has yet to impose discipline.
- Sergeant Radoncic has been a member of service for 19 years and has been a subject in 26 other CCRB complaint and 68 other allegations, six of which were substantiated in three

cases. § 87(2)(g)

- 201405057 involved substantiated allegations of refusal to provide name, shield number, and vehicle search, for which the Board recommended Command Discipline B and the NYPD imposed Command Discipline B.
- 201608467 involved substantiated allegations of frisk and stop for which the Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
- 202001583 involved a substantiated stop allegation, for which the Board recommended formalized training but the NYPD has yet to impose discipline.

Mediation, Civil and Criminal Histories

- Mediation was not offered due to the Agency moratorium on sending cases to Mediation.
- According to the New York City Office of the Comptroller, no Notice of Claim had been filed regarding this incident as of December 28th, 2021, over 90 days after the incident date **(Board Review 18)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator:	<u>Julia Pagnamenta</u>	<u>Inv. Pagnamenta</u>	<u>04/14/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Alexander Opoku-Agyemang</u>	<u>IM Opoku-Agyemang</u>	<u>4/14/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date